

Master Services Agreement

This Master Services Agreement (this "**Agreement**") is entered into as of June 10, 2026 (the "**Effective Date**"), between **Evergreen Consulting Group, LLC**, a Delaware limited liability company ("**Evergreen**" or "**Vendor**"), and **Horizon Energy Holdings, Inc.**, a Delaware corporation ("**Horizon**" or "**Customer**"). Each is a "**Party**" and they are collectively the "**Parties**."

1. Engagement; Statements of Work

The Parties are entering into this Agreement to establish a long-term collaborative engagement framework. Customer engages Vendor to perform professional services as described in one or more written Statements of Work ("**SOWs**") executed under this Agreement. Each SOW shall reference this Agreement and shall describe the scope, objectives, deliverables, fees, timeline, and milestones for the engagement. This Agreement governs each SOW; in the event of conflict between this Agreement and an SOW, the more specific provision controls, with the Parties presumed to have negotiated the SOW with full awareness of this Agreement.

2. Payment Terms

Vendor's compensation shall be a **combination of (a) a monthly retainer and (b) milestone-based fees** for engagement-specific deliverables, with the exact amounts and schedule set forth in each SOW. The retainer covers Vendor's ongoing availability, account-management overhead, and standing access to subject-matter experts; milestone fees compensate Vendor for specific deliverables produced.

Customer shall pay Vendor's retainer invoices on the first business day of each month (in advance) for that month's services. Milestone-based invoices are payable **net thirty (30) days** from the invoice date. Late payments accrue interest at one and one-half percent (1.5%) per month or the maximum lawful rate.

Customer may dispute any invoice in good faith with written notice within fifteen (15) days of receipt; the Parties shall resolve disputes through senior-executive discussions within thirty (30) days, escalating to the dispute-resolution mechanism in Section 9 if unresolved.

Vendor's fees are exclusive of taxes; Customer is responsible for applicable taxes other than those on Vendor's net income.

3. Intellectual Property; Joint Ownership of Jointly-Developed IP

The Parties anticipate that the engagement will produce intellectual property of three types, each treated as follows:

(a) **Customer-Specific Deliverables.** Work product produced by Vendor specifically and uniquely for Customer's business operations shall be the exclusive property of Customer. To the extent such Deliverables qualify as works made for hire, they are so; to the extent not, Vendor hereby assigns them to Customer.

(b) **Vendor Background IP.** Vendor's pre-existing intellectual property, methodologies, frameworks, tools, and know-how remain Vendor's exclusive property. Vendor grants Customer a perpetual, royalty-free, non-exclusive, worldwide license to use Vendor Background IP incorporated into a Deliverable solely as part of the Deliverable.

(c) **Jointly-Developed IP.** Intellectual property that is jointly conceived and reduced to practice by Vendor and Customer personnel collaboratively during the engagement shall be **jointly owned** by the Parties. Each Party may independently use, license, and commercialize jointly-developed IP without accounting to the other, subject only to confidentiality obligations and applicable law. The Parties will cooperate to register jointly-developed IP (e.g., joint patent applications) where appropriate, sharing reasonable costs.

Customer's pre-existing intellectual property remains Customer's exclusive property. Customer grants Vendor a limited license to use such intellectual property solely as necessary to perform the Services.

4. Warranties

Vendor represents and warrants that: (a) the Services will be performed in a professional and workmanlike manner consistent with prevailing industry standards; (b) the Deliverables will conform to the specifications set forth in the applicable SOW; (c) Vendor has all rights necessary to grant the licenses and assignments contemplated by this Agreement; and (d) the Services and Deliverables will comply with all applicable laws, including data-protection laws applicable to information processed by Vendor in the performance of the Services, and all applicable security standards reasonably required by Customer for engagements involving access to Customer's systems or data.

The warranties in this Section are in addition to (and do not displace) the implied warranties of merchantability and fitness for a particular purpose that apply by operation of law in the relevant jurisdiction.

Customer's remedies for breach of these warranties include re-performance, replacement, refund, or other remedies available at law or in equity, subject to the limitation of liability in Section 6.

5. Indemnification

Each Party (the "Indemnifying Party") shall defend, indemnify, and hold harmless the other Party (the "Indemnified Party") from and against third-party Losses arising out of (a) the Indemnifying Party's negligence, gross negligence, or willful misconduct; (b) the Indemnifying Party's breach of its representations and warranties; or (c) bodily injury, death, or property damage caused by the Indemnifying Party's employees or agents.

In addition, **each Party shall mutually indemnify the other against third-party intellectual-property claims** alleging that the Indemnifying Party's contribution to a Deliverable or to jointly-developed IP infringes the third party's intellectual-property rights. The mutual IP indemnity excludes Losses arising from (i) modifications made by the Indemnified Party, (ii) combinations of the Indemnifying Party's contributions with materials not supplied by the Indemnifying Party, or (iii) use outside the scope of the licenses granted herein.

The Indemnified Party shall promptly notify the Indemnifying Party of any claim, tender sole control of the defense to the Indemnifying Party with the Indemnified Party's reasonable cooperation, and not settle any claim without the Indemnifying Party's written consent (not to be unreasonably withheld).

6. Limitation of Liability

EXCEPT FOR (A) THE PARTIES' INDEMNIFICATION OBLIGATIONS UNDER SECTION 5, (B) AMOUNTS OWED FOR SERVICES RENDERED, (C) A PARTY'S BREACH OF CONFIDENTIALITY, AND (D) A PARTY'S GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR BODILY INJURY, **EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID BY CUSTOMER TO VENDOR UNDER THIS AGREEMENT IN THE TWENTY-FOUR (24) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.**

NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR LOST BUSINESS OPPORTUNITIES.

7. Term and Termination

This Agreement commences on the Effective Date and continues for an initial term of three (3) years (the "**Initial Term**"). At the end of the Initial Term, this Agreement automatically renews for successive one-year terms (each a "**Renewal Term**") **unless either Party provides written notice of non-renewal no later than one hundred eighty (180) days before the end of the then-current term.**

A Party may terminate this Agreement: (a) for cause, if the other Party materially breaches this Agreement and fails to cure within thirty (30) days after written notice; or (b) **for convenience upon one hundred eighty (180) days' written notice to the other Party.**

Termination of this Agreement does not affect SOWs in progress unless expressly stated. Sections 3, 5, 6, 8, and 11 survive termination, as do any post-termination obligations specified in surviving SOWs.

8. Confidentiality

Each Party shall protect the other Party's confidential information using **the same degree of care it uses to protect its own confidential information of similar nature and importance**, but in no event less than reasonable care. **Heightened obligations apply to** (a) personally identifying information (handled per applicable privacy and data-protection laws), (b) Customer's commercially sensitive operational data (financial, customer-list, strategic), and (c) information designated as a trade secret. Confidentiality obligations survive for the term of this Agreement and for **five (5) years** thereafter (indefinitely for trade secrets and information subject to data-protection laws).

9. Governing Law; Dispute Resolution

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles. Disputes shall first be escalated to senior executives of both Parties for good-faith resolution within thirty (30) days. Unresolved disputes shall be resolved by binding arbitration under the JAMS Comprehensive Arbitration Rules, conducted in Wilmington, Delaware, by a single arbitrator. Either Party may seek injunctive relief in court without first proceeding to arbitration.

10. Miscellaneous

Entire Agreement; Amendments. This Agreement, together with all SOWs, is the entire agreement between the Parties regarding its subject matter. Amendments require a writing signed by authorized representatives of both Parties.

Assignment. Neither Party may assign this Agreement without the other's prior written consent, except to an affiliate or to a successor in connection with a merger, acquisition, or sale of substantially all assets.

Independent Contractor. Vendor is an independent contractor.

Counterparts; Electronic Signature. This Agreement may be executed in counterparts and via electronic signature.

Severability. If any provision is held unenforceable, the remaining provisions remain in full force.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

EVERGREEN CONSULTING GROUP, LLC	HORIZON ENERGY HOLDINGS, INC.
By: _____	By: _____
Name: Patricia Nguyen	Name: William Carter
Title: Managing Partner	Title: Chief Operating Officer